



File No.: EXP202305782

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On September 9, 2022, the Director of the Spanish Agency for Data Protection issued a resolution in the sanctioning procedure of file number EXP202207950, followed against the AYUNTAMIENTO DE LOS LLANOS DE ARIDANE (hereinafter, the City Council). In this resolution, in addition to sanctioning with a warning, the following measures were required:

SECOND: TO REQUIRE the AYUNTAMIENTO DE LOS LLANOS DE ARIDANE, with NIF P3802400F, to provide evidence to this agency within one month of the appointment of a DPO, in accordance with the provisions of Article 37 of the GDPR.

SECOND: The electronic notification of the resolution of the sanctioning procedure was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), not being collected by the responsible party within the availability period and being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on September 20, 2022, as stated in the certificate in the file.

Although the notification of the resolution of the sanctioning procedure was validly carried out by electronic means in accordance with the provisions of Articles 41 and 43 of the LPACAP, for informational purposes, a copy was sent electronically which also expired on October 14, 2022, and another copy was sent by postal mail which was delivered on October 28, 2022, as evidenced in the file.

THIRD: On October 10, 2022, an entry was registered in this Agency, with number REGAGE22e00044992762, in which the City Council indicated that it planned to allocate budgetary provision in the 2023 fiscal year to comply with all requirements arising from data protection regulations, requesting an extension of the deadline.

FOURTH: On December 27, 2022, and January 23, 2023, the City Council was again required to provide evidence to this Agency within ten business days that it had adopted the appropriate corrective measures, in accordance with what was agreed in the aforementioned Resolution.

The notification of the first requirement expired on January 7, 2023, after not being collected within the availability period, while the notification of the second requirement was accepted by the City Council on February 1, 2023, as evidenced by the acknowledgments of receipt in the file.

FIFTH: On February 7, 2023, with entry registration number REGAGE23e00007858575, a letter was received from the Ombudsman requesting information about the actions taken by the City Council to comply with the order in the aforementioned resolution.

SIXTH: The City Council has not sent any response to this Agency that evidences compliance with the imposed measures.

SEVENTH: Against the aforementioned resolution, which requires the adoption of measures, no ordinary administrative appeal can be made due to the expiration of the established deadlines for it. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed and that a precautionary suspension of the resolution has been requested.

EIGHTH: On May 22, 2023, the Director of the Spanish Agency for Data Protection decided to initiate a sanctioning procedure against the City Council for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

NINTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the deadline granted for the submission of allegations had passed, it was confirmed that no allegations had been received from the City Council.

Article 64.2.f) of the LPACAP - a provision of which the City Council was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed

responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the City Council, and the sanction that could be imposed. Therefore, considering that the City Council has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The resolution of the sanctioning procedure and the requirements for compliance with the measures imposed therein indicated in the first, second, and fourth backgrounds were notified in accordance with the provisions of the LPACAP. This resolution became firm and executable due to the expiration of the deadlines established for the filing of the appeals indicated therein.

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3/6

SECOND: The City Council did not send any response to this Agency that would prove compliance with the imposed measures.

THIRD: The notification of the agreement to initiate the present sanctioning procedure was received by the City Council on May 24, 2023.

FOURTH: The City Council has not submitted any allegations regarding the agreement to initiate this sanctioning procedure within the specified timeframe.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Unfulfilled Obligation

According to the available evidence, it is considered that the City Council has failed to comply with the resolution of the Spanish Agency for Data Protection regarding the measures imposed on it.

Therefore, the facts described in the section "Proven Facts" are deemed to constitute an infringement, attributable to the City Council, for violation of Article 58.2.d) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring the processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame;"

III

Classification and Qualification of the Infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"The failure to comply with the resolutions of the supervisory authority under Article 58, paragraph 2,

shall be sanctioned in accordance with paragraph 2 of this article with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount.”

For the purposes of the limitation period for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“m) The failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679.”

IV

Imposed Sanction

Article 83.7 of the GDPR states the following:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 "Applicable regime for certain categories of controllers or processors" of the LOPDGDD states the following:

“1. The regime established in this article shall apply to the processing for which the following are responsible or processors:

(...)

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or to correct the effects of the infringement that has been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where appropriate, and to the affected parties who had the status of interested parties, where appropriate.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there exist...

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5/6

sufficient indications for this. In this case, the procedure and the sanctions to be applied will be those established in the legislation on disciplinary or sanctioning regime that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and it is demonstrated that there are technical reports or recommendations for treatment that have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible position and will order publication in the corresponding Official State or regional Gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions taken and the resolutions issued under this article will be communicated to the Ombudsman or, where appropriate, to the analogous institutions of the autonomous communities.

V

Adoption of measures

This Agency agrees to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the

aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame..."

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO DECLARE that the TOWN HALL OF LOS LLANOS DE ARIDANE, with NIF P3802400F, has infringed the provisions of Article 58.2 of the GDPR, an infringement classified in Article 83.6 of the GDPR.

SECOND: TO ORDER the TOWN HALL OF LOS LLANOS DE ARIDANE, with NIF P3802400F, to, pursuant to Article 58.2.d) of the GDPR, within ten working days, provide evidence to this agency of the appointment of a DPO, in accordance with the stipulations of Article 37 of the GDPR.

THIRD: TO NOTIFY this resolution to the TOWN HALL OF LOS LLANOS DE ARIDANE.

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6/6

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Data Protection Agency, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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